

23STCV08824 23STCV08824

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 23STCV08824 Hearing Date: September 17, 2026 Dept: 510

No. 1 - Vernel Trainor v. Los Angeles

Hostel, LLC, et al.

Plaintiff

Vernel Trainor's Request for Default Judgment

Plaintiff

Vernel Trainor requests default judgment against Defendant Los Angeles Hostel, LLC. Plaintiff's application for default judgment has many defects.

Importantly,

Defendant was not given the full 30-day statutory period to answer or otherwise appear in the action. Here, the Court granted Plaintiff's motion to serve Defendant via the Secretary of State on August 19, 2025. Per Plaintiff's proof of service, Plaintiff served the Secretary of State with the first amended complaint on June 9, 2026. Under Corporations Code section 17701.16(c), "[s]ervice in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State." Therefore, service was deemed complete on June 19, 2026, and Defendant had until July 19, 2026, to answer. (See CCP § 412.20(a)(3).) However, Plaintiff prematurely sought, and the Court thereon entered, default against Defendant on July 10, 2026. (See CCP § 585(a).) Therefore, any resulting default judgment would be void. (See *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848, 862 ["If the clerk's mechanical computation of the time elapsed since service was completed is in error and he should enter a default prematurely, a judgment based upon such default is void."].)

The Court also notes that

the default packet is incomplete. Plaintiff does not include a brief summary of the case, declarations in support of the judgment requested, an interest computation, or a proposed judgment, all of which must accompany the default judgment request. (See California Rules of Court, rule 3.1800(a).)

Disposition

Plaintiff's request for default judgment is denied without prejudice.

The Court hereby vacates the default entered against Defendant Los Angeles Hostel, LLC.